THE STATE

versus

SIMON MZIZI

HIGH COURT OF ZIMBAB WE
MUTEVEDZI & NDHLOVU JJ
BULAWAYO, 28 November 2025

Criminal review judgment

MUTEVEDZI J: This is a review of the proceedings of the Magistrates' Court which was placed before me in terms of s 58(3) of the Magistrate Court Act [*Chapter 7:10*] ("the MCA").

[1] Simon Mzizi (the accused), appeared before a magistrate sitting at Bulawayo Magistrates Court on a charge of contravening s 125 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the CODE") i.e. being found in possession of property reasonably suspected of being stolen. In full that provision reads as follows: -

> If any person-
> (a) Is or has been in possession of property capable of being stolen and the circumstances of his or her possession are such as to give rise, either at the time of his or her possession or at any time thereafter, to a reasonable suspicion that when he or she came into possession of the property it was stolen; and
> (b) The person is unbale at any time to give a satisfactory explanation for his or her possession of the property, the person shall be guilty of possessing property reasonably suspected of being stolen and liable to-
> (i) …
> (ii) …

[2] The accused pleaded guilty to the charge and the trial court entered that plea. In the midst of plea recording, a state witness was called and gave evidence. A ruling was made. Thereafter, the magistrate returned the verdict of guilty against the accused. He was sentenced to 8 months imprisonment of which 2 months was suspended on condition of future good behavior. The remaining 6 months imprisonment was commuted to community service. When the proceedings were placed before a scrutinizing regional magistrate, he had reservations regarding the propriety of the procedure which the trial magistrate had adopted. He was of the view that the trial magistrate had erred in accepting

the accused's plea of guilty and then recording the evidence of a state witness where there was a plea of guilty. He requested the trial magistrate to comment on those issues in a query which was couched in the following terms: -

> "This record seems to contain a cocktail of procedures. It's a plea first, in the middle of recording a plea, a witness is called to testify, a ruling is made.
> 1. On what basis did the trial magistrate record a plea on a charge of contravening section 125 of the Criminal Law code.
> 2. The procedure adopted in this record is provided for in which section of our law?"

[3] In his response, the trial magistrate acknowledged that the procedure was hybrid. However, he was of the view that the evidence of the person who formulated the reasonable suspicion that the property was stolen could be led during the recording of a plea under s 271(2)(b) of the Criminal Procedure and Evidence Act [*Chapter 9:07*] ("the CPEA") because the accused's plea of guilty alone is insufficient for a conviction. In his own words, he stated that: -

> "I have noted the issue raised by the Honourable Regional Magistrate and my response is as follows. Having gone through the cases of *S* v *Clacsom Moyo* HH531-15 and *S* v *Norman Gaviyaya* HH85-08 which dealt extensively with plea recordings for charges under s125 of the code, this court is of the view that the accused's plea of guilty alone is insufficient to support admissions in respect of matters of which the accused has no knowledge of indeed evidence must be led to show what was in the mind of the person who gave reasonable suspicion. In *casu* evidence was led from one Courage Marapuka a Security Guard before the accused was finally convicted on his own plea of guilt. I however stand guided whether or not such evidence from the person who formulated the reasonable suspicion can be led in plea proceeding under s271, (2)(b) and the correct procedure to adopt under such circumstances." (sic)

[4] Upon receipt of the trial magistrate response, the learned scrutinizing magistrate's stance was not altered. He referred the matter to be placed before a judge for review.

[5] The brief background facts leading to the arrest of the accused are that on 31 August 2025 along Khmai Road opposite UDINE, the accused person was driving a push cart containing 30 by 6m of metal rail. He was intercepted by security guards who were on patrol. They enquired where he had obtained the metal but the accused failed to give a satisfactory explanation of his possession of the property. He was subsequently arrested. He later appeared in court and pleaded guilty as already stated above.

[6] The State witness who was called to give evidence before the trial magistrate convicted the accused told the court that on the day in question they had met the accused who had a push cart with a metal rail. They questioned the accused as to where he had obtained the metal rail from but the accused failed to give an explanation. They arrested him. The court ruled

that the witness was credible and had every reason to believe that the property was stolen. The trial magistrate said:

> "The court is convinced that the witness had every reason to believe that the property could reasonably be stolen as the property was concealed in a black plastic. The accused gave two different accounts of where he got the metal from and even failed to name the person that he alleged he got the metal from."

[7] Thereafter, a verdict of guilty was entered. The issue here is simply whether or not it is permissible to record a plea of guilty for a contravention of s125 of the CODE and if it is, is it equally appropriate for a court to admit oral evidence during the recording of that plea. As correctly observed by the scrutinizing regional magistrate, in this jurisdiction there are two known procedures which are employed when determining criminal matters. A verdict can only be returned pursuant to either a plea recording in terms of s 271(2)(a) or (b) or the conduct of a contested trial in terms of s 198 of the CPEA.

[8] My reading of the law is that a court may enter a plea of guilty and return a verdict on any charge without hearing evidence. The only exception is in relation to cases of murder. S 271 (1) of the CPEA outlines the procedure followed on plea of guilty and is couched in the following terms:

> **"271 Procedure on plea of guilty**
> Where a person arraigned before the High Court on any charge pleads guilty to the offence charged or to any other offence of which he might be found guilty on that charge and the prosecutor accepts that plea, the court may, if the accused has pleaded guilty to any offence other than murder, convict and sentence him for that offence without hearing any evidence." (underlining is my emphasis).

[9] It is therefore **generally** permissible for a court to record a plea of guilty and convict an accused without hearing evidence on any charge including a contravention of s 125 of the CODE. Needless to state, the court can also enter a plea of guilty in murder cases but is precluded from returning a verdict without hearing evidence. Section 271 must be read carefully. Whilst it says a court can convict a person without hearing evidence, it does not state the opposite. There is nowhere in it where it is stated that a court cannot hear evidence where it has entered a plea of guilty. Interestingly, the opposite is actually true because subsection (4) of s 271 provides that a court is permitted to hear evidence on any aspect of the charge. It is couched as follows: -

> (4) The court may-
> (a) call upon the prosecutor to present evidence on any aspect of the charge; and
> (b) with regard to sentence, hear any evidence…

[10] In the case of *S* v *Ndlovu* HH522-23, I expressed the same view that during the recording of a plea of guilty it is permissible for evidence to be led to aid in the proof of any aspect of the charge or as a way of explaining any of the essential elements of the charge. I remarked that: -

> "Putting questions to an accused is not the only method of explaining a charge and its essential elements. There could be others but there is little doubt if any that it is effective and greatly assists an unrepresented accused to understand the constituent parts of the charge he/she faces. For instance, s271(4) of the Code is a provision which can be employed to aid in the explanation of a charge yet is underutilized in our procedure that one will be forgiven to think that it remains undiscovered for many who practice criminal law."

[11] If it is admitted that evidence may be presented when a court records a plea of guilty, it must also go without saying that the presentation of that evidence is not restricted to one method. It may be through *viva voce* testimonies, by way of affidavit or through formal admissions in terms of section 314 of the CPEA. Critically, and as I pointed out earlier, there is no difference between a determination via the plea procedure and the contested trial. Both remain forms of a criminal trial. The only difference is that the former is a shortened version of the latter.

[12] Having said this, it is admitted that a charge under s 125 of the CODE presents novel challenges. The crime as couched, requires that someone else other than the accused person, especially the arresting detail, must formulate a reasonable suspicion that the property which the accused possessed was stolen. I could not explain it better than CHIGUMBA J did in the case of *S* v *Moyo* HH531-15 when she remarked that:

> "It is incompetent for a court to accept a guilty plea from an accused person who is charged with an offence that involves the formulation of reasonable suspicion on the part of the arresting officer. The accused's plea of guilty alone is insufficient to support admissions in respect of matters which the accused has no knowledge. Evidence must be led to show what was in the mind of the person who had a reasonable suspicion (e.g. on a charge of being found in possession of goods in regards to which there is a reasonable suspicion that they were stolen). It is an analysis of the surrounding circumstances which must be scrutinized and held up to a certain standard, the standard of a reasonable man. This is part of the reasoning behind the prohibition against accepting a plea of guilty from an accused person who will have been charged with contravening what is now s 125 of the CODE. The state is required to prove the essential element of reasonableness beyond a reasonable doubt. It may not do so by accepting admissions from the accused about the state of mind the arresting detail."

[13] Section 12 of the then Miscellaneous Offences Act [Chapter 9;12], was the predecessor of the current section 125 of the CODE. The two provisions were worded

similarly. Dealing with the Miscellaneous Offences Act, in the case of *S v Chiwendo* 1999(1) ZLR 407 (H), this court made the same point that:

> "The court cannot find an accused guilty of contravening s 12 of the Miscellaneous Offences Act [Chapter 9:12] without evidence being led from the person who found the accused in possession about what led him to believe that the goods were stolen. The basis upon which the finder formed his suspicion is not a fact to which he [accused] can admit."

[14] Subsections (a) and (b) of s 125 are joined by the conjunctive word *'and'*. It follows that the requirements in both subsections must be satisfied before a conviction can ensue. In *S v Nyamunda* HH 687-22 MUGWARI J dealt with a similar scenario. She held that for a conviction of contravening section 125 of the CODE to stand the following essential elements must have been proven against an accused:

a. Possession of property capable of being stolen
b. Circumstances of possession such as give rise at the time of his possession or any time thereafter that the property could have been stolen
c. A reasonable suspicion of theft is formulated
d. Failure by the accused to render a satisfactory explanation for possessing the property.

[15] The State is required to demonstrate that the arresting officer considered the accused's possession of the property or the manner of possession thereof. Thereafter, he must disclose what caused him or her to formulate the suspicion that such property was stolen. Such information is not within the purview of the suspected person. Only the arresting detail may attest to that. An accused may not therefore be asked and admit to that during the recording of a plea. That position was explained by CHITAKUNYE J (now JA) in *S* v *Gaviyaya* 2008 (2) ZLR 159 (H) when he held that:

> "No court can convict an accused person under the section purely on the basis that the accused has not put in issue the question of his guilty. A conviction can properly be based on an admission of facts which are known to the accused. Where facts are not known to the accused evidence must be led to establish them. The fact that the accused may not be in a position to controvert such evidence is not a reason for not putting such evidence before the court."
>
> A court cannot make a finding on the satisfactoriness of an explanation given by the accused in court in the absence of evidence from the person who formed the suspicion. The accused is never in a position to appraise the court on the nature of that suspicion." (my underlining).

[16] In support of the above finding, I mentioned in *S* v *Moyo* HB173-24 that:

> "In all this, what l may need to clarify and take a slightly different approach about is the emphatic nature of the findings in *S* v *Moyo* (supra) which informed the regional magistrate's concern in this

> case that *"it is incompetent for a court to accept a guilty plea from an accused person who is charged with an offence that involves the formulation of reasonable suspicion on the part of the arresting officer."* My view is that contrary to *Moyo* the view expressed in *S* v *Chiwendo (supra)* obviates the need to hold a fully contested trial even in matters that may appear obvious and in which an accused himself accepts that any reasonable person would have formulated the opinion that the circumstances of his [accused's] possession of the property gave rise to reasonable suspicion that it was stolen. As already said, the court therein said *"The court cannot find an accused guilty of contravening s12 of the Miscellaneous Offences Act [Chapter 9:12] without evidence being led from the person who found the accused in possession about what led him to believe that the goods were stolen."*(the underlining is my emphasis) Critically, the court refrained from saying it is incompetent to accept a plea of guilty. I entirely agree with that position because it is possible and permissible to both accept a plea of guilty and still lead evidence from the person who found the accused in possession of the property."

[17] I need to repeat that what is prohibited is not the recording of a plea of guilty per se. Rather, what is proscribed is to find an accused guilty without hearing the evidence of an arresting officer as to how he formulated his reasonable suspicion that the property was stolen. The conclusion is therefore that, the law permits the recording of a plea of guilty for a contravention of s 125 of the CODE but a verdict of guilty cannot be entered without the evidence of the person who formulated the suspicion that the property possessed by the accused was stolen.

[18] In the instant case, the arresting detail, led by the prosecutor gave evidence of how he formulated the opinion that the property in the accused's push cart was stolen. There was nothing wrong with that procedure. What was prejudicial was that after the witness gave evidence, the court did not afford him the chance to challenge that evidence. The principles of a fair trial demanded the full participation of the accused particularly in an instance such as this where he was not represented. It was on that part that the trial magistrate's proceedings unraveled. For that reason, I am unable to certify the proceedings as having been in accordance with real and substantial justice. That omission was grossly prejudicial to the accused. Accordingly, I am forced to interfere with the conviction of the accused person and order that: -

a. The proceedings of the court aquo be and are hereby set aside
b. The accused's conviction and the attendant sentence be and are hereby quashed
c. The matter is remitted to the trial court for a trial *denovo* before a different magistrate

MUTEVEDZI J……

NDHLOVU J…….. I agree